



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 7, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201805295 regarding Police Officer Kiel Sui, Tax No. [REDACTED] (DADS No. 2019-20448) and Police Officer Santinderpal Singh, Tax # [REDACTED] (DADS No. 2019-20449)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including Body Worn Camera video. As acknowledged by CCRB, this matter was a separate incident from the original complaint CCRB was investigating. The actions of Police Officer Singh and Police Officer Sui were recorded on Body Worn Camera video which CCRB solely relied upon to make its recommendation. This type of circumstance has been addressed in the Memorandum of Understanding between the New York City Police Department and the New York City Civilian Complaint Review Board, dated November 21, 2019, and would generally not fall under the purview of the CCRB. Therefore, no disciplinary action will be taken against the officers in connection with CCRB's findings and recommended penalty in this matter.

Nevertheless, the Department has an obligation to address the actions of officers when the misconduct is clearly established, as was unmistakably demonstrated in this instance by Body Worn Camera video evidence. In this matter, Police Officer Sui was required to provide his name to the arrested individual when it was requested. There was no legitimate law enforcement reason that would have abated that requirement. Therefore, the Police Commissioner has determined that Police Officer Sui will receive Instructions from his Commanding Officer for violating Patrol Guide Procedure No. 203-09 (1) (Public Contact-General/Failure to Provide Name) for failing to provide his name to an individual upon request.

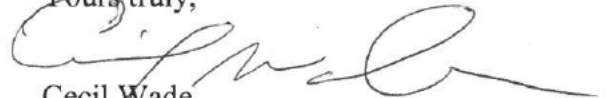
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Additionally, Police Officer Singh used profanity toward an individual without a legitimate law enforcement purpose and, thus, his language was gratuitous in nature. Therefore, the Police Commissioner has determined that Police Officer Singh shall receive a Schedule "A" Command Discipline for violating Patrol Guide Procedure No. 203-09 (Public Contact-General/Discourtesy).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read "Cecil Wade", written over the printed name.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office